NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-II), AT CHANDIGARH

CA (CAA) No. 42/Chd/Hry/2024 (1st Motion)

Under Sections 230 to 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

IN THE MATTER OF SCHEME OF ARRANGEMENT (DEMERGER) OF:

Nehru Place Hotels Private Ltd.
CIN: U55101HR1976PTC116355
having its registered office at
Plot No. 21, First Floor, Charmwood Plaza,
Eros Garden, Sector – 39, Surajkund,
Faridabad, Haryana – 121009

…….Applicant No. 1/ Demerged Company

AND

Lakewood Estate Private Limited
CIN: U68100HR2023PTC116521
having its registered office at
H. No. 11, Nit-5, H Block,
3rd Floor, Faridabad NIT,
Faridabad, Haryana- 121001

…….Applicant No. 2/ Resulting Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Judgement delivered on: 03.02.2025

Coram: HON'BLE SH. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE SH. ASHISH VERMA, MEMBER (TECHNICAL)

Present:

For the Applicant Companies: Sr. Adv. Anand Chhibbar with Mr. SP Singh Chawla & Mr. Vikas Mishra, Advocates.

PER: HON'BLE SH. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE SH. ASHISH VERMA, MEMBER (TECHNICAL)

ORDER

1. The present First Motion Company Application has been filed under Sections 230 to 232 of the Companies Act, 2013 (hereinafter referred to as the "Act") read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter referred to as the "Rules") by **Nehru Place Hotels Private Ltd.** (hereinafter referred to as the "Applicant No. 1/ Demerged Company") in respect of arrangement/ demerger of Applicant No. 1 with and into **Lakewood Estate Private Limited** (hereinafter referred to as the "Applicant No. 2/ Resulting Company "). A copy of the above Scheme of Arrangement (hereinafter referred to as the "Scheme") has been annexed as Annexure A-7 of the Application.

2. Applicant No. 1/ Demerged Company has prayed for dispensing with the requirement for convening the meeting of the equity shareholders of the Applicant Company No. 1/ Demerged Company and also to dispense with the requirement of issue and publication of notices for the same. Further, the Applicant No. 1/ Demerged Company has prayed to convene and hold the meetings of the Secured Creditors and Unsecured Creditors of the Applicant Company No. 1/ Demerged Company.

3. Applicant No. 2/ Resulting Company has prayed to dispense with the requirement for convening the meetings of the equity shareholders, secured creditors and unsecured creditors of the Applicant Company No. 2/ Resulting Company and also to dispense with the requirement of issue and publication of notices for the said meetings.

4. Further it is prayed that orders / directions are to be passed for the publication of the notices in relation to the meeting of Secured and Unsecured Creditors of the

Applicant Company No. 1/ Demerged Company in Business Standard (English) and Jansatta (Hindi), All India Edition.

5. The registered office of the Applicant No. 1/ Demerged Company and Applicant No. 2/ Resulting Company are situated at Faridabad, Haryana i.e., within the Jurisdiction of this Bench.

FACTS OF THE CASE

6. The facts of the case, as stated in the Application, are summarised below:

(I). That **Nehru Place Hotels Private Ltd. (hereinafter referred to as "Applicant No. 1 or Demerged Company")** is a company duly incorporated on 04.08.1976 as public limited company under the provisions of the Companies Act, 1956 with the Registrar of Companies, NCT of Delhi and subsequently got converted into private limited company, CIN "U55101HR1976PTC116355" and currently having its registered office at Plot No. 21, First Floor, Charmwood Plaza, Eros Garden, Sector – 39, Surajkund, Faridabad, Haryana – 121009.

(a) As on 1st April 2024, its authorised share capital is ₹30,00,00,000/- divided into 2,50,00,000 Equity Shares of ₹10/- each; 50,00,000 Equity Share Capital of Rs. 10 each with differential rights and issued, subscribed and paid-up share capital is ₹20,00,00,000/- divided into 2,00,00,000 Equity Shares of ₹10/- each. As per the audited accounts as on 31st March, 2024, it has the assets of ₹44583.18 lakh (comprising of non-current assets of ₹31276.06 lakh and current assets of ₹13307.12 lakh), which is financed by the equity share capital (₹36990.35 lakh), non-current liabilities (₹4246.32 lakh) and current liabilities (₹3346.50 lakh). The clause III (C) (43) of its Memorandum of

Association permits and authorizes demerger of the Demerged Company with any Company. Its objects, as set out in its Memorandum of Association, inter alia, are as follows:

(i). To carry on the business of hotels, restaurants, cafe, tavern, beer house, refreshment-rooms and lodging-house keepers, licensed wine, beer and spirit and liquor merchants, proprietors and managers of pleasure grounds and places of amusement, recreations, sports and entertainments of all kinds.

(ii). To carry on business as proprietors of restaurants, refreshment and tea rooms, cafes and milk and snack bars and to establish and provide all kinds of conveniences and attractions for customers and others.

(iii). To purchase, erect or otherwise acquire, establish, promote and equip, Hotels, Motels, Guest Houses and the like and act as collaborators of any other Hotels in India or in any other part of the world.

(iv). Company authorized to commence business as provided in Clauses 7, 34, 35 & 36 of part 'C' 'OTHER OBJECTS' vide Special Resolutions passed in the Extra-ordinary General Meeting dated 1-9-76 & 31-3-88, pursuant to the provisions by Section 149(2A) of the Companies Act, 1956.

(v). Pursuant to provisions of Section 149(2A) of the erstwhile Companies Act, 1956, Company was authorized to commence business as provided in Clause 43 of part 'C'' OTHER OBJECTS'

vide Special Resolution passed through Postal Ballot by the Shareholders on 20th September, 2008.

(II). Lakewood Estate Private Limited ("hereinafter referred to as "**Applicant No. 2 or Resulting Company**") is a private limited company duly incorporated under provisions of the Companies Act, 2013 on 17.11.2023, CIN "U68100HR2023PTC116521" with the Registrar of Companies, NCT of Delhi & Haryana. The Registered office of the Resulting Company/ Applicant Company No. 2 is situated at H. No. 11, Nit-5, H Block, 3rd Floor, Faridabad NIT, Faridabad, Haryana- 121001. As on 1st April 2024, its authorized share capital is ₹1,00,000/- divided into 10,000 Equity Shares of ₹10/- each and issued, subscribed & paid-up capital is ₹1,00,000/- divided into 10,000 Equity Shares of ₹10/- each, it has the assets of ₹47,910 (comprising of non-current assets of ₹0.00 and current assets of ₹47,910), which is financed by the equity share capital (₹1,00,000), non-current liabilities (₹0.00), and current liabilities (₹35,400). The clause III (B) (20) of its Memorandum of Association permits and authorizes its arrangement. Its objects, as detailed in clause III(B) of its Memorandum of Association, inter alia, are as follows:

a) To purchase, acquire, sell, lease, exchange, hire, let, sub-let, dispose-off or otherwise deal in real estates, land, buildings, civil works, and to develop Residential Projects & Townships, moveable and immoveable properties of any description either as owners or on collaborations or joint ventures or othe1wise acquire any interest in the same, to acquire membership of group housing societies, and to erect, construct, build, demolish, fabricate, execute, carry out, improve, work, develop and enlarge, rebuild, furnish, manage or control in India or abroad on any

land or immovable property and conveniences of all kinds, including turnkey jobs, railways, tramways, speedways, runways, roads, aerodromes, airways, theatres, cinema halls, hotels, holiday camps, Group restaurants, bars, club houses, pubs, casinos, resorts, water parks, multiplex complexes, convention halls, exhibition centres, amusement parks, Markets, shops, rooms flats, shopping malls, workshop, mills, factories, warehouses, cold storages, wharves, godowns, gardens, playground and place of entertainment, piers, wavers, dams, garages, reservoirs, embankments, canals, inigations, power houses, transmission lines, reclamation, improvements, sewage, drainage, sanitary works or other civil works and to otherwise deal in all kinds of building materials, equipment's, plant and machinery used in connection herewith.

b) To engage as Real Estate Promoters, Developers & Project Managers for civil, mechanical, energy, power, electrical and all other types of erection, commissioning project trading as well as consultant for execution of project on turnkey basis and as EPC Contractors & developers either individually or as joint venture with Government of India/State Government/Statutory Authority or with any company/ Firm/ LLP/ Individual/ Consultant whether local or foreign.

c) To carry on the business as owners, builders, colonizers, licensors, lessors, contractors, maintainers, promoters, developers, realtors, consultants, civil engineers, surveyors, designers, town planners, general and government civil contractors of immovable properties or any description wherever situated, all types of structural and piling

engineering work, all type of infrastructure work, interior designing, landscaping including construction & development of warehouses/logistic parks and act as interior and exterior designers and decorators, supervisors, consultants, planners, engineers, manufacturer & fabricators & to deal in all its goods and services required to provide all type of builders and construction activities , and its implementation in all way & mean in the field of residential, commercial & recreational buildings, interiors design and execution of office and residential space, exhibition design and execution of custom made stalls, retail design and other related activities.

(III). The copy of the Memorandum and Articles of Association along with the Certificate(s) of Incorporation and Master Data of the Applicant No. 1/ Demerged Company, Applicant No. 2/ Resulting Company have been annexed with the Application as Annexure A-1(Colly.), Annexure A-4(Colly.) and Page No. 354-358 respectively.

(IV). A copy of the audited financial statements as on 31st March, 2024 along with the independent auditor's report of the statutory auditor of the Applicant No. 1/ Demerged Company, Applicant No. 2/ Resulting Company have been annexed with the main Application as Annexure A-2(Colly.) at page 106-167 and Annexure A-5(Colly.) at page 206-216 respectively.

(V). The unaudited provisional statements as on 30th September 2024 containing the details of assets and liabilities of the Applicant No. 1/ Demerged Company, Applicant No. 2/ Resulting Company have also been annexed with the

Application as Annexure A-2(Colly.) at page 168-179 and Annexure A-5(Colly.) at page 217-218 respectively.

(VI). Subsequent to the date of the aforesaid unaudited financial statements, no substantial changes have occurred in the financial position of Applicant No. 1/ Demerged Company and Applicant No. 2/ Resulting except in the daily affairs of the regular business.

(VII). None of the Directors of the Applicant No. 1/ Demerged Company and Applicant No. 2/ Resulting Company has any material interest in the Scheme and further their respective shareholdings as held by them is recorded in their respective register of shareholders. The lists of Directors of Applicant No. 1/ Demerged Company and Applicant No. 2/ Resulting Company have been annexed with the Application as Annexure A-3 and Annexure A-6 respectively.

(VIII). The Scheme of Arrangement has been approved by the respective Board of Directors of the Applicant No. 1/ Demerged Company and Applicant No. 2/ Resulting Company vide Board resolutions dated 11th October 2024 and 13th November 2024 respectively. The Board Resolutions passed by the Applicant Companies have been annexed with the Application as Annexure A-8 (colly).

(IX). The Appointed Date of the Scheme shall be 01st April 2024 or such other date as may be assented to and approved by the Board of Directors of the Companies and approved by the Tribunal.

(X). The Scheme has been proposed to achieve the following objectives, namely:

1.1. The demerger of the business undertaking (more particularly defined in clause 2.7 of this scheme) of the Demerged Company (more

particularly defined in clause 2.6 of this scheme) into a separate entity i.e., Resulting Company will enable both the companies to focus on the control and running of their respective businesses and facilitate efficient management. It will also permit both the Demerged Company and the Resulting Company to exploit business opportunities more efficiently and effectively;

1.2. The proposed Scheme is in line with the global industry practice of focusing on the core businesses and with a view to achieve greater financial strength and flexibility. This will maximize shareholder value and increase long-terms financial returns and further enable shareholders to separately hold and run the business undertakings which best suit their business strategies and risk profiles;

1.3. Demerger will enhance efficiencies and will have different business interest into separate corporate entity, resulting in operational synergies, simplification, focused management, streamlining and optimization of the group structure and efficient administration;

1.4. In the light of the aforesaid rationale and subject to the approval of Shareholders of the Demerged Company and Resulting Company as well as creditors of the same (if required) and National Company Law Tribunal, Chandigarh Bench or any other statutory Authorities and in accordance with the provisions of Section 230 to 232 of the Companies Act, 2013 and other relevant provisions of the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and read with Section 2(19AA) of the Income Tax Act, 1961, the Board of Directors

of Demerged Company at their meeting held on 11.10.2024, and Resulting Company at the meeting held on 13.11.2024, have decided to demerge the Demerged Undertaking into the Resulting Company;

1.5. The proposed Scheme of Arrangement of Demerged Undertaking of the Demerged Company into Resulting Company shall comply with the provisions of Section 2(19AA) of the Income Tax Act, 1961 and other applicable provisions of Income Tax Act, 1961 and Accounting Standards as applicable to the Demerged Company and Resulting Company.

(XI). The Scheme, as proposed, is not expected to adversely affect the interests of any of the interested parties. Further, the interests of the Equity shareholders, Secured and Unsecured creditors of the Applicant Companies shall be protected and would not impact the amounts payable to them by the Demerged Company.

(XII). It is stated that the Board of Directors of the Applicant Companies in their meetings held on 11.10.2020 and 13.11.2024 respectively, have considered and unanimously approved the Scheme of Arrangement subject to sanctioning of the same by this Tribunal. The copies of the Board Resolutions of the Applicant Companies are attached as Annexure A-8(Colly.) of the application.

(XIII). The appointed date of the Scheme is 01.04.2024 as mentioned in Clause 2.3 of the Scheme of Arrangement which is attached as Annexure-A7 of the application.

(XIV). It is submitted by the Applicant Companies as per Para no. 30 at page 34 of the application that there are no investigation proceedings are pending or instituted under Sections 235 to 251 of the Companies Act, 1956 and/or under Sections 206 to 229 of the Companies Act, 2013 against the Applicant No. 1/ Demerged Company and Applicant No. 2/ Resulting Company and the Scheme of Arrangement does not contemplate payment to any shareholder pursuant to the reduction of share capital of the Company as per Section 66 of the Companies Act, 2013. Further, as per affidavit at page 47, there is no litigation pending with respect to the demerged undertaking is concerned.

(XV). It is further submitted that in pursuance of the proviso to Sec. 230 (7) and Section 232 (3) of the Act, the Applicant Companies have filed the certificate dated 21.11.2024 and 22.11.2024 respectively, issued by statutory auditors of the respective Applicant Companies certifying that the Scheme is in compliance with the Accounting Standards under Section 133 of the Act and the same are attached as Annexure A-17 of the application.

(XVI). It is further submitted by the counsel for the Applicant Companies that upon effectiveness of this Scheme and in consideration for Demerger, the Applicant No. 2/ Resulting Company shall without any further act, deed, issue and allot to each member of the Applicant No. 1/ Demerged Company, whose name is recorded in the register of members as on Record Date (or to their respective heirs, executors, administrators or other legal representatives or the successors-in-title, as the case may be) its fully paid-up equity shares in the following ratio:

- *221 fully paid-up equity shares of Rs.10/- each in the Resulting Company for every 100 fully paid-up equity shares of Rs. 10/- each held in the Demerged Company.*

(XVII). The Scheme does not attract Section 233 of the Companies Act, 2013, as the Scheme being the fulcrum of this Application is not contemplated between two small companies. It is a scheme between two closely held companies falling within the same group. In any case, Section 233(14) of the Companies Act 2013 enables the companies falling under the purview of Section 233 of the Companies Act 2013 to use the provisions of Section 232 of the Companies Act 2013 for the approval of any scheme for demerger or arrangement.

(XVIII). The transfer of the Business Undertaking from the Applicant No. 1/ Demerged Company to the Applicant No. 2/ Resulting Company does not require any approval from the Reserve Bank of India under the provisions of the Foreign Exchange Management Act, 1999 as it is not applicable to them as per the affidavit deposed by the respective companies more particularly given at page no. 47 and page no. 51 of the Application.

(XIX). The Scheme is in no way, a Scheme of compromise or arrangement with the creditors as all the creditors will be paid in full as and when their respective amounts fall due in the usual course. That the present is not a Scheme of Corporate debt restructuring as envisaged under Section 230 (2) of the Act.

(XX). No reduction of capital is being envisaged as part of the Scheme between the Applicant Companies.

(XXI). In this regard, it is also hereby submitted that a transaction falling under Section 5 of the Competition Act, 2002 and triggering the threshold limits as specified

therein, requires to obtain an approval from the Competition Commission of India in terms of Section 6 of the Competition Act, 2002 unless the transaction falls within the exempted category as prescribed under the Competition Act, 2002 and under the Competition Commission of India (Procedure in regard to the transaction of business relating to combinations) Regulations, 2011. In the instant case, the Proposed Arrangement does not fall under the category or the threshold limit as specified under Section 5 of the Competition Act, 2002 and hence, the same does not qualify as 'Combination' under the Competition Act, 2002 and will not require any filing of notice or obtaining approval from Competition Commission of India. Further, as no other entity controls or is in a position to influence the management or affairs of these entities, they are not authority(s), therefore, no special permission and approval is required to be obtained or service of the present Scheme is required to be made to any other sectoral or regulatory authority.

(XXII). The Applicant No. 1/ Demerged Company has 7 Equity Shareholders as on 31st October 2024 as per the List of Shareholders (annexed with the application as Annexure- A9) certificate of M/s JC Bhalla & Company, Chartered Accountants, certifying the list of Equity Shareholders (annexed with the Application as Annexure A-18). It has prayed to dispense with convening, holding and conducting meetings of its Equity Shareholders, as all the 7 Equity Shareholders have approved the Scheme without any modification/ amendment by way of affidavits and have also given their written consent for seeking dispensation from convening and holding the meeting for consideration and approval of the Scheme. The consent affidavits of the Equity

Shareholders have been annexed with the Application as Annexure A-10 (colly) & Annexure-A13 (Colly) respectively.

(XXIII). There is no requirement for convening any meeting for Secured Creditor of the Applicant No. 2/ Resulting Company as it does not have any Secured Creditor as on 30th September, 2024 as per the certificate from M/s Maheshwari & Sharad, Chartered Accountants (annexed with the Application as Annexure A-14(Colly.).

(XXIV). There is no requirement for convening any meetings for Unsecured Creditors of the Applicant No. 2/ Resulting Company, as it only has 2 (Two) Unsecured Creditors as on 30th September 2024 as per the certificate from M/s Maheshwari & Sharad, Chartered Accountants (annexed with the Application as Annexure A-14(Colly.) and the said Unsecured Creditors of the Applicant No. 2/ Resulting Company have given their respective consents and no objection by way of Affidavit to the present Scheme and for dispensation of the meeting and the same is prayed for and the Consent by way of Affidavit of the Unsecured Creditors of the Applicant No. 2/ Resulting Company is annexed in the application as Annexure – A15 (Colly).

(XXV). The status of consent of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant No. 1/ Demerged Company has been summarised in the Table below:

Name of the Applicant Companies	Shareholders along with their consent				Creditors along with their consents					
	Equity Shareholder (A)	Consent of (A) with calculations	Preference Shareholders (B)	Consent of (B) with calculations	Debenture Holders (C)	Consent of (C) with calculations	Secured Creditors (D)	Consent of (D) with calculations	Unsecured Creditors (E)	Consent of (E) with calculations
Applicant Company No.1	7	100% [Annexure-A10(Colly) @ Page No. 269-289]	NA	NA	NA	NA	1 [Annexure-A11(Colly.) @ Page 291]	NA	305 [Annexure-A11(Colly.) @ Page 293-302]	NIL
Applicant Company No.2	7	100% (Annexure-A13(Colly.) @ Page No. 305-325	NA	NA	NA	NA	NIL	NIL	2 (Annexure-A14 @ Page No. 326)	100% (Annexure-A14 @ Page No. 327-333)

ANALYSIS AND FINDINGS

7. The Applicant no. 1 / Demerged Company and Applicant no. 2 / Resulting Company as per the list of Shareholders has 7 (Seven) Equity Shareholders which is given list provided at Annexure-A9 and Annexure-A12 respectively and further corroborated from the Notes forming part of the standalone financial statements of the Applicant no. 1 / Demerged Company at page no. 140 and for Applicant no. 2/ Resulting Company at page 213 of the Application, however as per the submission of the learned Sr. Counsel for the Applicant Companies, there was a change in the shareholding of Applicant no. 2/ Resulting Company. In view of the above, this Tribunal vide its Order dated 21st January, 2025 directed the Applicants to file CA Certificate of the respective companies certifying the list of Shareholders. In compliance of the Order, it has filed respective additional affidavit enclosing CA certificate certifying the list of Shareholders as Annexure – A18 and Annexure – A19, vide diary no. 03756/01 and 03756/02 dated 22.01.2025 and the relevant part of the list of Shareholders are given below:

List of Shareholders of the Applicant No. 1/ Demerged Company are as follows:

Sr. No.	Name & Address of Shareholders	No(s) of Equity Shares of Rs.10/- each held	Percentage
01	Mr Satish Kumar Sood 19, Golf Links, New Delhi-110003	40,94,800	20.474
02	Mrs Rekha Sood 19, Golf Links, New Delhi-110003	9,76,500	4.883
03	Mr Sumant Sood D-1031, New Friends Colony New Delhi-110025	14,58,750	7.294
04	Mr Amit Rai Sood 19, Golf Links, New Delhi-110003	14,58,750	7.294
05	Mr Aditya Sood 19, Golf Links, New Delhi-110003	14,58,700	7.293
06	Mr Satish Kumar Sood & Mr. Amit Rai Sood, jointly 19, Golf Links, New Delhi-110003	52,76,250	26.381
07	Mr Satish Kumar Sood & Mr. Aditya Sood, jointly 19, Golf Links, New Delhi-110003	52,76,250	26.381
	TOTAL:	**2,00,00,000**	**100.00**

List of Shareholders of the Applicant No.2/ Resulting Company are as follows:

S. No.	Name & Address of Shareholders	No(s) of Equity Shares of Rs.10/- each held	Percentage (%)
01	Mr. Sumant Sood D-1031, New Friends Colony, New Delhi-110025	730	7.30
02	Mr. Satish Kumar Sood 19, Golf Links, New Delhi-110003	2,047	20.47
03	Mr. Amit Rai Sood 19, Golf Links, New Delhi-110003	730	7.30
04	Mr. Satish Kumar Sood jointly with Mr. Amit Rai Sood 19, Golf Links, New Delhi-110003	2638	26.38
05	Mrs. Rekha Sood 19, Golf Links, New Delhi-110003	488	4.88
06	Mr. Aditya Sood 19, Golf Links, New Delhi-110003	729	7.29
07	Mr. Satish Kumar Sood jointly with Mr. Aditya Sood 19, Golf Links, New Delhi-110003	2638	26.38
TOTAL		**10,000**	**100**

8. It is further submitted that the list of Secured and Unsecured Creditors of the Applicant Companies duly certified by their respective Statutory Auditors are attached as Annexure-A11(Colly.) and Annexure-A14 respectively. As per the list of Applicant No. 1/ Demerged Company, there is 1 (One) Secured Creditor and 305 (Three-Hundred and Five) Unsecured Creditors as on 30.09.2024 and as per the list of

Applicant No. 2/ Resulting Company, there are NIL Secured Creditors and 2 (Two) Unsecured Creditors as on 30.09.2024.

9. Since this is the first motion application seeking order for dispensation/ convening of the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies, the analysis has been limited to that and other issues would be analysed at the time of the Second Motion Petition of the Applicant Companies.

10. The directions of this Bench in the present case are as under:

I. In relation to Applicant No. 1/ Demerged Company:

a. The meetings of the Equity Shareholders of Applicant No. 1/ Demerged Company are dispensed with keeping in view the shareholding and ownership pattern of the Applicant No. 1/ Demerged Company and the fact that the consents to the proposed Scheme of Arrangement by way of affidavits has been furnished by all of its Equity Shareholders as per the lists of Shareholder which is duly certified by the Chartered Accountant.

b. The meeting of the Secured Creditor and the Unsecured Creditors of the Applicant No. 1/ Demerged Company is sought to be convened. Accordingly, this Tribunal directs to convene the meeting. The quorum of the meeting of the Secured Creditor shall be 1 in number as there is only one creditor in this category. The meetings of the Secured Creditors of the Applicant No. 1/ Demerged Company is directed to be held at:

APPLICANT COMPANY NO. 1	DATE	TIME	VENUE
Nehru Place Hotels Private Limited	22.03.2025	12:00 NOON	Eros Hotel, Nehru Place, New Delhi-110019

c. The quorum of the meeting of the Unsecured Creditors shall be 90 in number or 40% in value of the Unsecured Creditors. The meetings of the Unsecured creditors of the Applicant No. 1/ Demerged Company is directed to be held at:

APPLICANT COMPANY NO. 2	DATE	TIME	VENUE
Nehru Place Hotels Private Limited	22.03.2025	01:00 PM	Eros Hotel, Nehru Place, New Delhi-110019

d. The publication of notices in relation to the meeting of the Secured and unsecured Creditors of the Applicant No. 1/ Demerged Company shall be published in Business Standard (English) and Jansatta (Hindi) as sought by the Applicant No. 1/ Demerged Company.

II. In relation to Applicant No. 2/ Resulting Company:

a. The meetings of the Equity Shareholders of Applicant No. 2/ Resulting Company are dispensed with keeping in view the shareholding and ownership pattern of the Applicant No. 2/ Resulting Company and the fact

that the consents to the proposed Scheme of Arrangement by way of affidavits has been furnished by all of its Equity Shareholders as per the lists of Shareholder which is duly certified by the Chartered Accountant.

b. Since there are NIL secured creditors of the Applicant No. 2/ Resulting Company, there is no requirement of convening the meeting of the secured creditors of the Applicant No. 2/ Resulting Company and hence, the requirement is obviated.

c. The two unsecured creditors of the Applicant No. 2/ Resulting Company have given their respective consents and no objection by way of Affidavit to the present Scheme and for dispensation of the meeting.

d. Keeping in view that all the respective consents have been given by the Shareholders and Unsecured Creditors, the meetings of the Equity Shareholders, Secured and Unsecured Creditors of Applicant No. 2/ Resulting Company are dispensed with keeping in view the shareholding and ownership pattern of the Applicant No. 2/ Resulting Company and the fact that the consents to the proposed Scheme of Arrangement by way of consent affidavits have been furnished by all of its Equity Shareholders and Unsecured Creditors.

III. In case, the required quorum as noted above for the meetings is not present at the commencement of the meeting, the meeting shall be adjourned by 30 minutes and thereafter, the persons present and voting shall be deemed to constitute the quorum.

IV. Ms. Eshna Kumar, Advocate, address: A7, Ground Floor, Neeti Bagh, New Delhi, Mobile No. 9717313618, email ID: eshna@eshnakumar.com, is appointed

as the Chairperson for the meeting to be called under this order. An amount Rs. 1,50,000/- (Rupees One Lakh Only) be paid for her services as the Chairperson.

V. Dr. Sanjay Kumar, Retd. IRS, R/O- T-8/2B, Moulsari Avenue, DLF Phase 3, Sector 24, Gurgaon-1220101, Haryana, Mobile No. 9871768104, Email ID: amarsanjayirs@gmail.com, is appointed as the Alternate Chairperson for the meeting to be called under this order. An amount of Rs. 1,25,000/-(Rupees One Lakh Twenty Five Thousand Only) be paid for his services as the Alternate Chairperson.

VI. Mr. Rohit Garg, Practising Chartered Accountant, address: House No. 1370, Sector 40B, Chandigarh, Mobile No. 9988901370, Email ID:Gargrohitassociates@gmail.com, is appointed as the Scrutinizer for the above meeting to be called under this order. An amount of Rs. 1,00,000/- (Rupees One Lakh Only) be paid for his services as the Scrutinizer.

VII. The fee of the Chairperson, Alternate Chairperson and Scrutinizer and other out of pocket expenses for them shall be borne by the Applicant No. 1.

VIII. It is further directed that individual notices of the said meetings shall be sent by Applicant Company No. 1/ Demerged Company through registered post or speed post or through courier or e-mail, 30 days in advance before the schedule date of meeting, indicating the day, date, the place and time as aforesaid, together with a copy of the Scheme, copy of explanatory statement with Valuation Report and any other documents, as may be prescribed under the Companies Act, 2013, in the same manner as the notices shall be served to various authorities as per Section 230(5) of the Companies Act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. It is clarified that the notice of meetings published in the

newspapers will not be deemed to be the notice to the Equity Shareholders, Preference Shareholders, Secured and Unsecured Creditors.

IX. It is further directed that along with the notices, Applicant Company No. 1/ Demerged Company shall also send, statements explaining the effect of the scheme on the creditors, key managerial personnel, promoters and non-promoter members etc. along with effect of the arrangement on any material interests of the Directors of the Company, if any, as provided under sub-section (3) of Section 230 of the Act.

X. The Audited Financial Statements of Applicant Companies as on 31.03.2024 and the provisional accounting statements on a subsequent date i.e. 30.09.2024 in terms of Section 232(2)(e) of the Act be also circulated for the aforesaid meetings.

XI. Voting shall be allowed on the "Scheme" through electronic means which will remain open for a period as mandated under Clause 8.3 of Secretarial Standards on General Meetings to the Applicant Company No. 1/ Demerged Company under the Act and the Rules framed thereunder.

XII. The Scrutinizer's report will contain his/her findings on the compliance to the directions given above.

XIII. The Chairperson shall be responsible to report the result of the meeting to the Tribunal in Form No. CAA-4, as per Rule 14 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 within 7 (seven) days of the conclusion of the meeting. The Chairperson would be fully assisted by the authorized representative/Company Secretary of the Applicant Company No. 1/ Demerged Company and the Scrutinizer, who will assist the Chairperson and Alternate Chairperson in preparing and finalizing the report.

XIV. The Applicant Companies shall individually and in compliance of sub-section (5) of Section 230 of the Act and Rule 8 of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 send notices in Form No. CAA-3 along with copy of Scheme, Explanatory Statement, Accounting Statements and the disclosures mentioned in Rule 6 of the "Rules" to (i) Regional Director, Northern Region, Ministry of Corporate Affairs; (ii) Concerned Registrar of Companies; (iii) Income Tax Department through concerned Nodal Officers; and such authorities, which are likely to be affected by the Scheme and shall require that representations, if any, to be made by them, shall be made within a period of thirty days from the date of receipt of such notice pursuant to Section 230(5) of the Companies Act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 with suitable changes in the notice relating to waiver of the meetings. If no response is received by the Tribunal from the above authorities within 30 days of the date of receipt of the notice, it shall be presumed that such authorities have no representations to make on the Scheme.

XV. The Applicant Company No.1 / Demerged Company shall furnish a copy of the Scheme free of charge within one day of any requisition for the Scheme made by any creditor or member/ shareholder entitled to attend the meeting as aforesaid.

XVI. The authorized representative of the Applicant Company No. 1/ Demerged Company shall furnish an affidavit of service of notice of meeting and publication of advertisement and compliance of all directions contained herein at least a week before the proposed date of the meetings.

XVII. All the aforesaid directions are to be complied with strictly in accordance with the applicable laws including forms and formats contained in the Rules as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

11. With the aforesaid directions, this **First Motion Application i.e. CA (CAA) No. 42/Chd/Hry/2024 stands allowed and is disposed-off.** A copy of this order be supplied to the learned counsel for the Applicants, who in turn shall supply a copy of the same to the Chairperson, Alternate Chairperson and the Scrutinizer Immediately.

Sd/-
(Ashish Verma)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

February 03, 2025

Japneet